

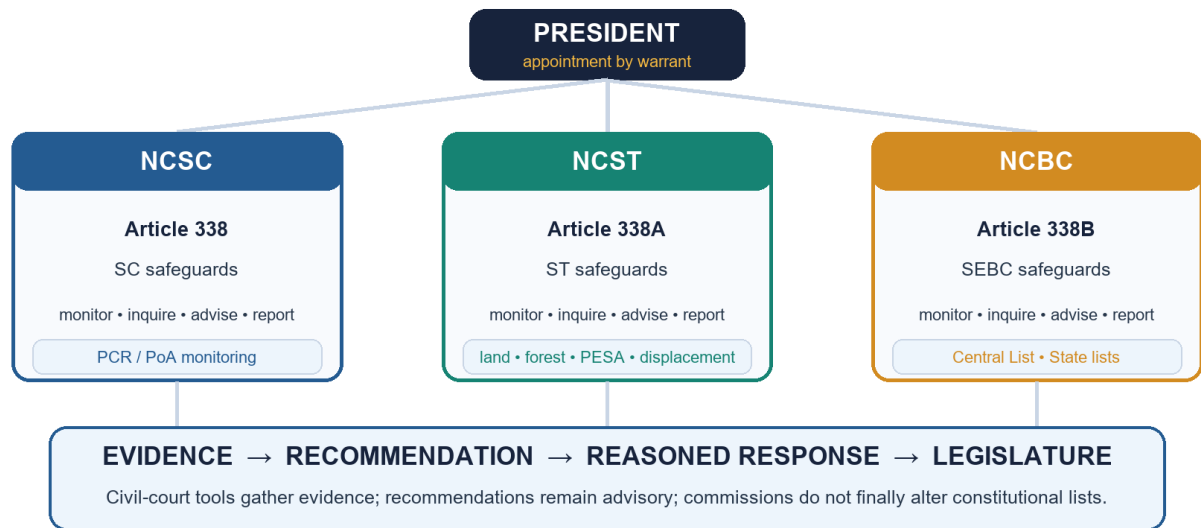
SOLVED PRACTICE WORKBOOK

Polity 31 - National Commissions for SCs, STs and Backward Classes - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CONSTITUTIONAL SAFEGUARD ARCHITECTURE

Shared inquiry and accountability engine • distinct group domains and list routes



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

PYQ, Practice and Solved Workbook

Audited PYQ routing note

- [FACT] The audited 2018-2023 routing ledgers assign four direct Mains demands and one direct Prelims demand to this topic: 2018 GS-II Q2, 2018 GS-II Q16, 2020 GS-II Q15, 2022 GS-II Q5 and 2023 Prelims Q35.
- [FACT] The 2024 Prelims Q84 list-identification question is included as a verified adjacent PYQ because Article 342 mechanics are an expressly required part of this package.
- [FACT] Exact English wording below was checked against locally held official papers.
- [LIMIT] The official 2023 Prelims key is not held locally. The question is retained and conceptually resolved, but no official or inferred option letter is asserted.

Visual 76 - PYQ route audit

Year	Paper/Q	Demand	Route
2018	GS-II Q2	NCSC and minority-institution reservation	direct
2018	GS-II Q16	multiplicity and umbrella commission	direct
2020	GS-II Q15	constitutionalising NCW	direct cross-cutting
2022	GS-II Q5	NCBC statutory-to-constitutional role	direct
2023	Prelims Q35	constitutional versus statutory bodies	direct; key unavailable locally
2024	Prelims Q84	Article 342 identification authority	adjacent list-mechanics control

Verified PYQ 1 - UPSC GS-II 2018, Q2 - 10 marks, 150 words

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Demand decoding

- **Whether** requires a direct yes/no position.
- **Enforce** requires distinction between inquiry/recommendation and binding legal command.
- **Religious minority institutions** activates Articles 15(5) and 30(1).

Evidence-led model solution

The NCSC cannot itself enforce SC reservation in religious-minority educational institutions.

[FACT] Article 338 authorises NCSC to monitor SC safeguards, inquire into specific deprivation complaints, advise on socio-economic development and report with recommendations. Clause (8) gives evidentiary civil-court powers during inquiry, not a decree-enforcement jurisdiction.

[FACT] Article 15(5) enables special provisions, including reservation in admissions, for socially and educationally backward classes and SCs/STs, but expressly excludes minority educational institutions protected by Article 30(1). *T.M.A. Pai Foundation* and *P.A. Inamdar* protect minority/private-unaided institutional autonomy, while *Ashoka Kumar Thakur* upheld the statutory OBC framework without erasing the minority-institution exclusion.

[ANALYSIS] NCSC may investigate discriminatory practice falling outside legitimate minority autonomy, seek records, recommend corrective policy and expose non-compliance through its report. It cannot create a reservation obligation where the Constitution has excluded minority institutions, nor can it execute its recommendation as a court decree.

[LIMIT] Minority status does not immunise every act from equality, regulatory or criminal law; the narrow conclusion concerns compulsory reservation under the stated constitutional route.

Thus, NCSC has monitoring and persuasive authority, but the Articles 15(5)-30(1) boundary and its advisory character prevent it from enforcing such reservation.

Why this earns marks: It answers “whether” immediately, links Article 338 power to the Articles 15(5)/30 limit, uses named cases and qualifies rather than absolutising minority autonomy.

Verified PYQ 2 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Demand decoding

- **Argue your case** requires a defended position, not an unranked list.
- The answer must distinguish constitutional commissions from statutory commissions.

Evidence-led model solution

India's commission landscape combines constitutional specialists—NCSC, NCST and NCBC under Articles 338, 338A and 338B—with statutory bodies such as NHRC, NCW and the National Commission for Minorities. Overlap is real, but a complete merger is not the best first response.

Case for an umbrella body: A common intake system can reduce forum-shopping; shared research and regional infrastructure can lower duplication; uniform hearing and follow-up standards can strengthen vulnerable complainants whose identities intersect.

Case against merger: [FACT] NCSC, NCST and NCBC possess distinct constitutional mandates and cannot be abolished or merged through ordinary administrative action. [FACT] NCST's 2005 functions cover tribal land, forests, displacement, resources and PESA—issues not reducible to generic human-rights review. [ANALYSIS] SC untouchability/atrocity safeguards and SEBC list federalism also require specialist knowledge. A generalist umbrella risks dilution and weaker constituency access.

The NHRC itself is statutory and recommendatory; placing constitutional bodies beneath it would create source-of-authority and accountability conflicts. Merger also does not cure delayed appointments, weak staffing, poor data or non-binding recommendations.

A better model is **coordinated specialisation**: a shared digital intake and referral protocol, joint inquiries for overlapping harms, common data standards, interoperable regional offices and recommendation-wise government response dashboards, while preserving distinct constitutional identities.

Therefore, rationalisation of statutory overlap is defensible, but wholesale merger is disproportionate. Coordination secures administrative efficiency without sacrificing constitutional history, domain expertise and group-specific accountability.

Why this earns marks: It takes a clear position, gives the strongest argument on both sides, distinguishes legal bases, uses NCST as named evidence and proposes an institutionally feasible middle path.

Verified PYQ 3 - UPSC GS-II 2020, Q15 - 15 marks, 250 words

Which steps are required for constitutionalization of a Commission? Do you think imparting constitutionality to the National Commission for Women would ensure greater gender justice and empowerment in India? Give reasons.

Evidence-led model solution

Constitutionalising the National Commission for Women requires more than renaming the existing statutory body.

Steps: Parliament must pass a Constitution Amendment Bill under Article 368 inserting an Article that defines the body's existence, composition, appointment, tenure framework, duties, reporting route, inquiry powers and consultation role. The amendment must secure the constitutionally prescribed special majority; State ratification is necessary only if the proposal touches a matter listed in the Article 368 proviso. Consequentially, the NCW Act, 1990 would require repeal or adaptation, and rules would operationalise service conditions and procedure.

Why constitutional status can help: Articles 338-338B provide the comparison. Entrenchment raises the cost of abolition, a President-to-Parliament report route compels public reasons for rejected recommendations, and a consultation clause can bring gender impact into major policy design. A constitutionally secured mandate may also strengthen continuity and symbolic parity.

Why it is insufficient: NCSC, NCST and NCBC remain recommendatory despite constitutional status. Civil-court powers gather evidence but do not punish. Executive-dominated appointments, vacancies, weak regional capacity, delayed reports and poor follow-up can persist. Gender justice also depends on police, courts, labour regulation, health, education, budgets and local institutions.

Therefore, constitutionalisation can improve permanence and accountability, but greater empowerment requires transparent appointments, resources, reasoned government responses, time-bound reports and coordination with enforcement agencies. Status is an enabling platform, not an outcome guarantee.

Why this earns marks: It separately answers the procedural and evaluative limbs, uses Article 368 and the 338-series comparison, and ends with a qualified institutional verdict.

Verified PYQ 4 - UPSC GS-II 2022, Q5 - 10 marks, 150 words

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Evidence-led model solution

The 102nd Amendment transformed NCBC from a specialised statutory list-adviser into a broader constitutional safeguard commission.

[FACT] Following *Indra Sawhney* (1992), the NCBC Act, 1993 created a permanent body mainly to examine inclusion, exclusion and over/under-inclusion in the Central backward-class list. The Act already supplied civil-court evidentiary powers.

[FACT] The 102nd Amendment, operational from 15 August 2018, inserted Article 338B and Article 342A and repealed the 1993 framework. NCBC now investigates and monitors all SEBC safeguards, inquires into rights complaints, advises and evaluates socio-economic development, reports to the President, recommends corrective measures and must normally be consulted on major SEBC policy.

[ANALYSIS] Constitutional status adds permanence, broader subject jurisdiction and parliamentary accountability. [LIMIT] It does not make NCBC a court or final list-maker: Central List alteration follows Article 342A and parliamentary law, and recommendations remain advisory.

After *Jaishri Laxmanrao Patil* read the 102nd Amendment as displacing State identification power, the 105th Amendment restored/clarified State and UT own lists under Article 342A(3).

Thus, constitutionalisation strengthened status, scope and visibility, but effective social justice still depends on data, capacity, reasoned follow-up and constitutionally valid reservation policy.

Why this earns marks: It answers the post-transformation "role", distinguishes new and continuing features, and integrates the 105th Amendment without allowing federal list doctrine to overwhelm the 150-word demand.

Verified PYQ 5 - UPSC Prelims 2023, Q35

Consider the following organizations/bodies in India: 1. The National Commission for Backward Classes 2. The National Human Rights Commission 3. The National Law Commission 4. The National Consumer Disputes Redressal Commission How many of the above are constitutional bodies? A. Only one B. Only two C. Only three D. All four

Controlled concept resolution

- [FACT] NCBC is constitutional under Article 338B.
- [FACT] NHRC is statutory under the Protection of Human Rights Act, 1993.
- [FACT] The Law Commission is constituted through executive resolutions, not the Constitution.
- [FACT] NCDRC is statutory under consumer-protection legislation.
- [ANALYSIS] Therefore, the constitutional-body count is one.
- [LIMIT] The official 2023 Prelims key is not held locally. No option letter is claimed as an official or inferred key.

Verified PYQ 6 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A key: B.

[FACT] Article 342 gives initial specification power to the President by public notification, after consultation with the Governor where a State is concerned. [FACT] ST status is State/UT-specific, so statement 2 is correct. Parliament later includes or excludes by law.

Original MCQs - 36 questions

OM1. Current composition

Each of the NCSC, NCST and NCBC consists of

A. a Chairperson, a Vice-Chairperson and three other Members B. a Chairperson and four other Members without a Vice-Chairperson C. a Chairperson, a Vice-Chairperson and five other Members D. one Special Officer appointed by the President

Answer: A.

[FACT] Articles 338(2), 338A(2) and 338B(2) provide the same five-member design.

OM2. Combined commission operational date

The first constitutional combined National Commission for Scheduled Castes and Scheduled Tribes under the 65th Amendment was constituted on

A. 26 January 1950 B. 12 March 1992 C. 28 September 2003 D. 19 February 2004

Answer: B.

[FACT] NCSC's official history distinguishes the 1990 Amendment Act from constitution of the first commission on 12 March 1992.

OM3. NCSC-NCST separation

The separate NCSC and NCST became operational on

A. 7 June 1990 B. 12 March 1992 C. 19 February 2004 D. 23 August 2005

Answer: C.

[FACT] The 89th Amendment was enacted in 2003 but came into force for separation on 19 February 2004.

OM4. 102nd Amendment commencement

The constitutional NCBC architecture under the 102nd Amendment commenced on

A. 11 August 2018 B. 14 August 2018 C. 18 August 2021 D. 15 August 2018

Answer: D.

[FACT] Assent was 11 August; Notification S.O. 3989(E), dated 14 August, appointed 15 August 2018.

OM5. 105th Amendment commencement

The 105th Amendment became operational on

A. 15 September 2021 B. 18 August 2021 C. 19 August 2021 D. 5 May 2021

Answer: A.

[FACT] Assent and Gazette publication preceded the commencement notification.

OM6. Article 338 special coverage

Article 338(10), after removal of the earlier backward-class reference by the 102nd Amendment, continues to extend the Scheduled-Caste reference to the

A. religious minorities B. Anglo-Indian community C. denotified tribes D. economically weaker sections

Answer: B.

[FACT] This is a textual feature of Article 338, not a common clause in Articles 338A or 338B.

OM7. NCST additional function

Which is specifically found in the 2005 presidential rules on NCST's other functions?

A. fixing royalty rates for all minerals B. deciding individual FRA titles finally C. recommending measures on tribal ownership of minor forest produce D. administering Autonomous District Councils

Answer: C.

[FACT] The rules name minor forest produce; the other options confer powers the NCST does not possess.

OM8. NCBC State-report route

Under Article 338B(7), a State-related report is forwarded to the

A. Governor, who may choose whether to lay it B. Chief Justice of the High Court C. President for direct laying in the State Legislature D. State Government, which causes it to be laid before the State Legislature

Answer: D.

[FACT] This is a textual difference from Articles 338(7) and 338A(7), which use the Governor route.

OM9. Monitoring duty

Investigation and monitoring of safeguards, and evaluation of their working, appears in

- A. clause (5)(a) of each commission Article B. clause (6) dealing with Parliament C. clause (8) dealing with civil-court powers D. clause (9) dealing with consultation

Answer: A.

[FACT] Clause (5)(a) is the systemic safeguard-monitoring function.

OM10. Complaint duty

Inquiry into a specific complaint about deprivation of rights is primarily authorised by

- A. the list-identification Articles only B. clause (5)(b) of the relevant commission Article C. the Governor's discretionary power D. Article 368

Answer: B.

[FACT] Complaint inquiry is distinct from systemic monitoring under clause (5)(a).

OM11. Exact civil-court power

Which expression accurately reproduces a clause (8) power?

- A. issuing binding writs to government B. punishing contempt by imprisonment C. issuing commissions for examination of witnesses and documents D. reviewing Supreme Court judgments

Answer: C.

[FACT] "Issuing commissions" is an evidentiary process; it is not a power to issue constitutional writs.

OM12. Power not conferred

Civil-court powers do not by themselves authorise a commission to

- A. receive affidavit evidence B. requisition public records C. examine a summoned person on oath D. impose criminal punishment

Answer: D.

[LIMIT] The powers are investigative and evidentiary, not penal.

OM13. Major-policy clause

The constitutional direction that governments consult the commission on major policy matters is best understood as

- A. a mandatory consultation process without an automatic veto B. a requirement of concurrence in every individual administrative order C. a transfer of legislative power to the commission D. a power to invalidate policy without court review

Answer: A.

[ANALYSIS] Consultation must be meaningful, but the Articles do not make advice binding.

OM14. 105th consultation exception

The proviso inserted in Article 338B(9) excludes that clause's application for the purposes of

- A. Article 341(2) B. Article 342A(3) C. Article 338A(5)(f) D. Article 340(1)

Answer: B.

[FACT] The exception accompanies the State/UT own-list power restored/clarified by the 105th Amendment.

OM15. Scheduled Castes list

Initial specification of Scheduled Castes for a State is governed by

A. Article 340 B. Article 342A C. Article 341 D. Article 338B

Answer: C.

[FACT] Article 341 is the SC list Article.

OM16. Later SC/ST list change

After an initial presidential notification, inclusion or exclusion from an SC/ST list is made by

A. the relevant national commission by order B. the Governor by notification C. the State Cabinet by resolution D. Parliament by law

Answer: D.

[FACT] Articles 341(2) and 342(2) reserve later variation to Parliament.

OM17. Scheduled Tribes list

Which Article governs initial specification of Scheduled Tribes?

A. Article 342 B. Article 341 C. Article 338 D. Article 366(26C)

Answer: A.

[FACT] Article 342 parallels Article 341 but concerns tribes and tribal communities.

OM18. Territorial character

A community's status as an ST

A. must be identical throughout India B. may differ from one State/UT to another C. is decided finally by NCST D. depends only on residence in a Scheduled Area

Answer: B.

[FACT] The constitutional notification is State/UT-specific.

OM19. Central SEBC List

After the 105th Amendment, Article 342A(1) principally concerns

A. State lists for municipal purposes B. all backward-class lists for every constitutional purpose C. the Central List for Central Government purposes D. the SC list under Article 341

Answer: C.

[FACT] The 105th Amendment inserted the express Central-purpose limitation.

OM20. State SEBC list

Article 342A(3) permits a State or Union territory to

A. alter the Central List by executive order B. ask NCBC to issue the State list C. vary the SC list through rules D. prepare and maintain by law its own SEBC list for its own purposes

Answer: D.

[FACT] Entries may differ from the Central List.

OM21. Definition bridge

The constitutional definition of “socially and educationally backward classes” is found in

A. Article 366(26C) B. Article 341(1) C. Article 338A(9) D. Article 330

Answer: A.

[FACT] Article 366(26C) now accommodates Central, State and Union-territory purposes through Article 342A.

OM22. NCBC and list inclusion

Which statement is correct?

A. NCBC's recommendation itself amends the Central List B. NCBC advises/examines, while constitutional list change follows Article 342A C. every State list requires an NCBC concurrence certificate D. courts must accept every NCBC recommendation

Answer: B.

[LIMIT] Influence in the process is not final constitutive authority.

OM23. Statutory NCBC composition

Under the 1993 Act, the statutory NCBC included

A. only serving civil servants B. Chairperson + Vice-Chairperson + three Members in the present form C. a judicial Chairperson, a social scientist, two backward-class specialists and a Member-Secretary D. the Union Social Justice Minister as ex officio Chair

Answer: C.

[FACT] The 102nd Amendment replaced this statutory composition with the current constitutional pattern.

OM24. 1993 advice formula

The repealed NCBC Act, 1993 stated that advice given under its inclusion/exclusion function would

A. always be void unless Parliament approved first B. operate as a Supreme Court decree C. bind every State Legislature absolutely D. ordinarily be binding on the Central Government

Answer: D.

[FACT] “Ordinarily” allowed a qualified rather than absolute binding formula.

OM25. Civil-court continuity

Which feature was not wholly new in 2018 because the statutory NCBC already possessed it?

A. civil-court evidentiary powers B. constitutional entrenchment C. Article 338B reporting D. constitutional major-policy consultation

Answer: A.

[FACT] The source of the power changed from statute to Constitution; the basic evidence toolkit had existed.

OM26. Institutional origin of statutory NCBC

The judicial direction most directly linked to a permanent backward-class body came from

A. *T.M.A. Pai Foundation* B. *Indra Sawhney* C. *S.R. Bommai* D. *Janhit Abhiyan*

Answer: B.

[FACT] The 1992 Mandal judgment drove the 1993 statutory institution.

OM27. Maratha judgment and Article 342A

The majority in *Jaishri Laxmanrao Patil* read the 102nd Amendment as

A. abolishing NCBC B. making all reservation unconstitutional C. displacing States' independent SEBC-identification power D. converting every State list into an SC list

Answer: C.

[FACT] The 105th Amendment responded to this federal consequence.

OM28. Purpose of 105th Amendment

The 105th Amendment primarily

A. merged NCSC and NCST B. made all NCBC recommendations binding C. abolished the Central List D. restored/clarified State and UT power to maintain own SEBC lists

Answer: D.

[FACT] It also inserted the Article 338B(9) proviso and revised Article 366(26C).

OM29. Davinder Singh

The 2024 judgment permits States to

A. sub-classify Scheduled Castes for fair benefit distribution on supporting evidence B. delete a caste from the Article 341 list by executive order C. treat SC status as nationally uniform D. ignore equality review

Answer: A.

[LIMIT] Sub-classification is not list alteration.

OM30. Presidential List boundary

Under *Davinder Singh*, a sub-classification measure

A. automatically changes the Presidential notification B. cannot use benefit distribution as a device to exclude the remainder of the listed class C. requires no empirical basis D. gives NCSC final quota-allocation power

Answer: B.

[FACT] The Court requires a constitutionally defensible, evidence-backed design.

OM31. NCSC and atrocity cases

Which institutional allocation is accurate?

A. NCSC conducts the criminal trial B. NCSC files every charge-sheet C. NCSC monitors/inquires, while police, prosecutors and courts exercise criminal-law powers D. the Special Court submits its judgment for NCSC approval

Answer: C.

[FACT] Constitutional monitoring and criminal adjudication are complementary, not interchangeable.

OM32. NCST boundary

NCST

A. directly administers every Fifth Schedule area B. replaces all PESA Gram Sabhas C. grants final mining clearances D. monitors and advises on tribal safeguards without administering those institutions

Answer: D.

[LIMIT] Its 2005 functions are recommendation and monitoring functions.

OM33. NHRC comparison

The NHRC is

A. a statutory body under the Protection of Human Rights Act, 1993 B. created by Article 338 C. a constitutional appellate court over NCSC D. the final SC/ST list authority

Answer: A.

[FACT] Broad human-rights jurisdiction does not change its statutory source.

OM34. National Commission for Minorities

The National Commission for Minorities is

A. established under Article 338B B. statutory under the National Commission for Minorities Act, 1992 C. the Article 342A list-maker D. a constitutional court

Answer: B.

[FACT] It must not be conflated with NCSC/NCST/NCBC.

OM35. State commissions

State SC/ST/BC commissions

A. can alter the Central constitutional lists finally B. replace the relevant national constitutional commission C. operate under State-specific legal frameworks without displacing national constitutional authority D. exercise Supreme Court jurisdiction

Answer: C.

[FACT] Their source, powers and territorial reach depend on the relevant State framework.

OM36. Institutional effectiveness

Which is the best evaluation?

A. constitutional status guarantees compliance B. civil-court powers guarantee conviction C. reporting alone guarantees implementation D. status matters, but capacity, timely reports, reasons and follow-up determine practical effect

Answer: D.

[ANALYSIS] Institutional performance is a design-and-implementation equation.

Remedial MCQs - 12 questions

RM1. Current-size trap

A candidate writes that each current commission has a Chairperson and five other Members. The correction is

A. Chairperson + Vice-Chairperson + three other Members B. Chairperson + four judges C. Chairperson + Vice-Chairperson + five other Members D. one Special Officer only

Answer: A.

[FACT] The historical combined body and the current bodies have different compositions.

RM2. Historical-composition trap

The combined commission created through the 65th-Amendment design had

- A. five persons in total B. Chairperson + Vice-Chairperson + five other Members C. Chairperson + three other Members D. no Vice-Chairperson

Answer: B.

[FACT] Current five-member composition should not be projected backward.

RM3. State-report trap

Which pairing is accurate?

- A. Article 338B -> Governor only B. Article 338A -> State Government, never Governor C. Articles 338/338A -> Governor; Article 338B -> State Government D. all three -> Chief Minister

Answer: C.

[FACT] The difference is visible in the enacted constitutional text.

RM4. Clause (8) context trap

Civil-court powers are available

- A. for any political statement issued by a commission B. only after a High Court delegates jurisdiction C. for every governmental decision whether related to safeguards or not D. while investigating clause (5)(a) matters or inquiring into clause (5)(b) complaints

Answer: D.

[FACT] Context limits the power.

RM5. "Issuing commissions" trap

The phrase means

- A. a procedural method for examination of witnesses/documents B. creating a new constitutional commission C. issuing an arrest warrant D. appointing a State Commission

Answer: A.

[FACT] It is a conventional evidentiary expression.

RM6. State-list form trap

Article 342A(3) says a State or Union territory may prepare and maintain its own list

- A. by a commission's oral advice B. by law C. by a Governor's private communication D. only after Parliament amends the Central List

Answer: B.

[FACT] The legal form is expressly specified.

RM7. Consultation-exception trap

The 105th Amendment's proviso to Article 338B(9)

- A. abolishes all NCBC consultation B. applies to Article 341 changes C. removes clause (9) for the purpose of State/UT own lists under 342A(3) D. makes NCBC advice binding on courts

Answer: C.

[LIMIT] The exception should not be generalised beyond its text.

RM8. Amendment-date trap

Which statement is correct?

A. the 102nd and 105th Amendments commenced on their assent dates B. the 89th Amendment's separate commissions operated from 2003 C. the 65th Amendment's combined commission operated from 1990 D. the 102nd commenced 15 August 2018 and the 105th commenced 15 September 2021

Answer: D.

[FACT] The answer distinguishes enactment/assent from notified commencement.

RM9. List-authority trap

Later inclusion or exclusion in an SC or ST list requires

A. parliamentary law B. an NCSC/NCST final order C. a State executive notification alone D. a Governor's direction

Answer: A.

[FACT] Articles 341(2) and 342(2) control.

RM10. Sub-classification trap

The safest description of *Davinder Singh* is that it

A. lets States delete castes from the Presidential List B. permits evidence-based distributional sub-classification without changing the list C. creates an automatic creamy-layer statute for SCs/STs D. transfers Article 341 power to NCSC

Answer: B.

[CURRENT] Separate opinions must not be converted into a single unanimous rule beyond the holding.

RM11. NCBC-transformation trap

Which statement best captures 2018?

A. every NCBC power was newly invented B. NCBC lost all inclusion/exclusion relevance C. constitutionalisation broadened safeguards/reporting while civil-court tools had statutory precedent D. NCBC became the final reservation court

Answer: C.

[FACT] The change was major but not a complete institutional creation ex nihilo.

RM12. Reform-status trap

A public appointment panel, fixed report-laying deadline and binding follow-up dashboard are

A. already clauses (10)-(12) of every commission Article B. parts of the 89th Amendment C. holdings of *Indra Sawhney* D. reform proposals unless enacted through the competent route

Answer: D.

[LIMIT] A good Mains answer labels proposals as proposals.

Original solved Mains practice - 8 questions

Original Solved Mains 1 - 10 marks, 150 words

Question: "Civil-court powers do not make the National Commissions for SCs, STs and Backward Classes courts." Explain.

Model solution

The statement distinguishes institutional tools from adjudicatory status.

[FACT] Articles 338(8), 338A(8) and 338B(8) give the commissions civil-court powers only while investigating safeguards or inquiring into specific complaints. They may summon persons across India, examine them on oath, compel documents, receive affidavits, requisition public records and issue commissions for witness/document examination.

[ANALYSIS] These powers improve fact-finding and prevent departments or parties from defeating an inquiry by withholding evidence. They support informed recommendations and reports.

[LIMIT] The commissions cannot on that basis convict, sentence, award executable damages, strike down a law or conclusively adjudicate title. Police and prosecutors enforce criminal law; civil/constitutional courts issue binding judgments within jurisdiction. Commission findings instead travel through administrative follow-up and the constitutional report-and-memorandum route.

Thus, the bodies are constitutional investigative-recommendatory institutions with selected court-like tools, not courts of plenary jurisdiction.

Why this earns marks: It gives the exact clause context and powers, explains their purpose and states four clear legal limits.

Original Solved Mains 2 - 10 marks, 150 words

Question: Examine how the reporting clauses of Articles 338, 338A and 338B create legislative accountability.

Model solution

The reporting design converts expert findings into an answerable constitutional record.

[FACT] Each commission submits annual and other reports. Under clause (6), the President causes Union-related reports to be laid before each House of Parliament with a memorandum stating action taken or proposed and reasons for non-acceptance.

[FACT] Under Articles 338(7) and 338A(7), State-related reports go to the Governor for laying before the State Legislature. Article 338B(7) instead routes them to the State Government, which causes the laying.

[ANALYSIS] This structure prevents a report from remaining private correspondence. It allows legislators, committees, media and affected groups to compare recommendation with governmental response. The reason-giving requirement raises the political cost of silent rejection.

[LIMIT] Accountability can weaken where submission, transmission or laying is delayed, memoranda are generic, or follow-up is not tracked. Laying also does not make recommendations binding.

Therefore, the clauses create transparency and deliberative sanction, but practical accountability depends on timeliness and recommendation-wise scrutiny.

Why this earns marks: It identifies the NCBC textual difference, links reason-giving to accountability and avoids equating laying with enforcement.

Original Solved Mains 3 - 15 marks, 250 words

Question: Compare the constitutional design and distinctive domains of the NCSC, NCST and NCBC.

Model solution

Articles 338, 338A and 338B use one institutional template for three different terrains of social justice.

Common design: [FACT] Each body has a Chairperson, Vice-Chairperson and three Members appointed by the President; may regulate procedure; monitors safeguards; inquires into complaints; advises and evaluates development; submits reports; recommends measures; exercises specified civil-court powers during inquiry; and must normally be consulted on major policy.

NCSC: Its domain includes SC equality, anti-untouchability, representation, service and atrocity safeguards. It may monitor PCR/PoA implementation, but police, prosecutors and Special Courts enforce criminal law. Article 338(10) retains the Anglo-Indian reference.

NCST: Tribal disadvantage is territorially and resource embedded. The 2005 rules add minor forest produce, minerals/water, land alienation, displacement, forest participation, PESA and shifting cultivation. NCST monitors these safeguards but does not administer Fifth/Sixth Schedule bodies or adjudicate FRA claims.

NCBC: Article 338B broadened the 1993 list-focused statutory body into a full SEBC safeguard commission. Its distinctive context is the Central/State list architecture under Article 342A. After the 105th Amendment, Article 338B(9) consultation does not apply for Article 342A(3) State-list purposes.

Textual accountability difference: NCSC/NCST State reports go to the Governor; NCBC's Article 338B(7) uses the State Government.

[ANALYSIS] Specialisation recognises that identical procedural machinery cannot erase distinct histories and policy fields.

[LIMIT] None of the three is a court or final list-maker; recommendations remain advisory.

Thus, the commissions share constitutional stature but derive relevance from differentiated expertise.

Why this earns marks: It compares both common architecture and four precise differences, with named rules and limits rather than three disconnected descriptions.

Original Solved Mains 4 - 15 marks, 250 words

Question: Explain the constitutional architecture for identifying Scheduled Castes, Scheduled Tribes and socially and educationally backward classes. What role do the national commissions play?

Model solution

The Constitution separates expert advice from the final legal act of identification.

Scheduled Castes: [FACT] Article 341 authorises the President, after Governor consultation for a State, to specify SCs by public notification. Parliament alone may later include or exclude by law.

Scheduled Tribes: [FACT] Article 342 creates the parallel State/UT-specific route for tribes and tribal communities. Territorial specificity means one community's status can differ across States.

SEBCs: [FACT] After the 105th Amendment, Article 342A(1)-(2) governs the Central List for Central Government purposes: presidential specification and parliamentary variation. The Explanation defines the Central List. Article 342A(3) allows every State/UT, by law, to maintain its own list for its own purposes; entries may differ. Article 366(26C) supplies the definition bridge.

Commission role: NCSC, NCST and NCBC investigate safeguards, receive representations, gather evidence and recommend. NCBC has special inclusion/exclusion expertise inherited from its 1993 origin. Their analysis may inform executive and legislative processing.

[LIMIT] A commission does not add or delete a community by final order. Governors do not declare STs. Courts interpret validity but do not substitute themselves for the parliamentary list-amendment function.

Davinder Singh further distinguishes **identification** from **distribution**: evidence-based SC sub-classification may allocate benefits within the list without changing Article 341 membership.

Therefore, list legitimacy combines constitutional authority, territorial sensitivity, expert evidence and legislative accountability.

Why this earns marks: It covers all four requested Articles, names each final authority, positions the commissions accurately and adds the current sub-classification distinction.

Original Solved Mains 5 - 15 marks, 250 words

Question: NCST's distinctive mandate reflects the territorial and resource dimensions of tribal justice, but it does not administer tribal self-government. Discuss.

Model solution

NCST's Article 338A design is common to the other commissions, but its 2005 additional functions recognise that tribal disadvantage is tied to land, habitat, resources and displacement.

[FACT] The presidential rules ask NCST to recommend measures on ownership of minor forest produce, safeguards over mineral and water resources, viable livelihoods, relief and rehabilitation after development-induced displacement, prevention of land alienation, tribal participation in forest protection, full PESA implementation and reduction of disempowering shifting cultivation.

[ANALYSIS] These functions let NCST examine whether development treats tribes merely as beneficiaries or as rights-bearing communities. FRA implementation, Gram Sabha participation, commons and cultural survival become relevant evidence even though FRA post-dates the 2005 notification.

However, institutional boundaries remain. Fifth Schedule Governors and Tribal Advisory Councils have their constitutional roles; PESA Gram Sabhas exercise local powers through law; Sixth Schedule Autonomous Councils possess specified legislative, judicial and administrative functions; FRA committees process claims; mining, forest and environmental authorities issue statutory decisions.

[LIMIT] NCST may summon evidence, inquire, recommend and report, but cannot itself grant a forest title, cancel a mining lease, legislate for an Autonomous Council or acquire land.

The appropriate reform is therefore stronger monitoring, regional access, joint field studies and reasoned government response—not substitution of NCST for self-government institutions.

Thus, NCST is a constitutional sentinel over tribal safeguards. Its effectiveness lies in connecting dispersed institutions to accountability while respecting their legal competence.

Why this earns marks: It names the 2005 domains, distinguishes every major tribal institution and derives a boundary-respecting reform conclusion.

Original Solved Mains 6 - 20 marks, 250 words

Question: "Constitutional status is necessary but insufficient for effective social-justice commissions." Evaluate with reference to NCSC, NCST and NCBC.

Model solution

Constitutional status is valuable because it entrenches an institution and creates a durable accountability route, but outcomes depend on capacity and follow-up.

Why necessary: Articles 338-338B guarantee existence, common composition, presidential appointment, own procedure, six duties, evidence-compulsion powers, mandatory major-policy consultation and report laying with reasons for non-acceptance. The 89th Amendment's separation of NCST recognised distinct tribal problems; the 102nd Amendment placed NCBC's broader SEBC-safeguard role beyond an ordinary statutory design.

Why insufficient: First, recommendations are advisory. Civil-court powers collect evidence but do not produce decrees or punishment. Second, executive-led appointments and government-dependent staffing can constrain perceived autonomy. Third, vacancies and weak regional presence reduce access. Fourth, poor social data weakens identification and development advice. Fifth, delayed reports or laying reduce preventive value; the NCSC archive records substantial lag in a recent report cycle. Sixth, jurisdiction overlaps with police, courts, welfare departments, PESA/FRA institutions and State commissions. Seventh, governments may formally respond without implementing.

Differentiated impact: NCSC requires effective linkage with PCR/PoA enforcement; NCST needs land/forest/displacement expertise and field presence; NCBC requires transparent list evidence and correct Centre-State coordination after Article 342A.

Reform: publish appointment criteria, fill posts predictably, strengthen research and regional offices, set report/response timelines, create recommendation-wise dashboards and use joint-referral protocols. Blanket binding powers require caution because they may duplicate courts and elected policy authority.

Therefore, constitutional status secures voice, continuity and visibility; institutional independence, evidence and accountable implementation convert those assets into justice.

Why this earns marks: It evaluates against explicit criteria, uses body-specific evidence, gives a counterweight to the critique and proposes proportionate reforms.

Original Solved Mains 7 - 20 marks, 250 words

Question: Trace how the 102nd and 105th Constitutional Amendments reshaped the backward-classes institution and Centre-State identification power.

Model solution

The two amendments separate two questions: the status of NCBC and the federal authority to identify SEBCs.

Before 2018: *Indra Sawhney* led to the NCBC Act, 1993. The statutory body primarily examined inclusion/exclusion and over/under-inclusion; its advice in that scheme was ordinarily binding and it had civil-court evidence powers.

102nd Amendment: Operational from 15 August 2018, it inserted Article 338B, Article 342A and Article 366(26C), while the 1993 Act was repealed. NCBC became a constitutional body with broader safeguards monitoring, complaints, socio-economic advice/evaluation, reporting and major-policy consultation. Original Article 342A used presidential specification and parliamentary variation language.

Judicial consequence: In *Jaishri Laxmanrao Patil* (2021), the majority read the wording as displacing States' independent power to identify SEBCs. The Maratha quota also failed the separate 50 per cent ceiling test; the two issues should not be conflated.

105th Amendment: Operational from 15 September 2021, it confined Article 342A(1)-(2) to the Central List for Central purposes, defined that list, inserted clause (3) allowing States/UTs by law to maintain different own-purpose lists, amended Article 366(26C), and exempted 342A(3) purposes from Article 338B(9) consultation.

Assessment: The 102nd strengthened national institutional accountability but created a federal ambiguity with major consequences. The 105th restored/clarified subnational identification while preserving a Central List.

[LIMIT] State list power does not remove constitutional equality review or reservation limits, and NCBC constitutionalisation does not make its recommendations judicial orders.

Thus, the trajectory moved from status enhancement with centralising text to an explicit dual-list federal settlement.

Why this earns marks: It follows chronology, separates institutional and federal questions, gives commencement dates and uses the case-amendment relationship accurately.

Original Solved Mains 8 - 20 marks, 250 words

Question: Suggest reforms to improve the independence, accountability and coordination of the National Commissions for SCs, STs and Backward Classes without converting them into parallel courts.

Model solution

Reform should strengthen evidence, voice and follow-up while preserving the commissions' investigative-recommendatory character.

Appointments and tenure: Publish eligibility and conflict-of-interest criteria, forecast vacancies and use a transparent search/shortlist process before presidential appointment. This improves legitimacy without changing the constitutional appointing authority.

Capacity: Fill sanctioned posts on schedule, strengthen regional offices, create multidisciplinary research units and ensure accessible digital plus offline complaints. NCST requires land/forest/resource expertise; NCSC needs service and atrocity-safeguard knowledge; NCBC needs social-statistical and federal-list expertise.

Evidence: Adopt common minimum inquiry standards, secure data-sharing with ministries/States and publish methodology. Sensitive personal data and complainant identity require protection.

Reporting: Prescribe fixed calendars for submission, transmission, legislative laying and response. Memoranda should answer each recommendation, state reasons and identify responsibility and deadline. A public dashboard should distinguish accepted, partly accepted, rejected and implemented recommendations.

Coordination: Establish referral protocols among national and State commissions, NHRC, NCM and enforcement bodies. Joint thematic inquiries should address intersectional harms without dissolving specialist mandates.

Legislative scrutiny: Dedicated committee hearings on major reports can turn formal laying into substantive accountability.

Why not parallel courts: Blanket binding orders would require appeal, procedural safeguards and jurisdictional demarcation and could conflict with courts, police and elected policy authority. Clause (8) evidence tools should remain tied to investigation/inquiry.

Therefore, the preferred model is “strong evidence + mandatory reasons + visible follow-up”, not unreviewable commission command.

Why this earns marks: It answers all three reform dimensions, differentiates body capacities, states implementable proposals and expressly respects separation of functions.